

**Justification and Approval for
Other Than Full and Open Competition**

Completion Instructions: The Department of Health and Human Services (HHS) has established a standard template for the preparation of a J&A for Other Than Full and Open Competition. If this is an 8(a) set-aside, please note this form is not required unless the acquisition is valued (including all options) at greater than \$20 million. This template is NOT applicable for actions using simplified acquisition procedures (FAR Subpart 13.5), Federal Supply Schedule orders (FAR 8.4), or task or delivery orders subject to fair opportunity (FAR 16.505).

Tailor all aspects of this template to the individual acquisition. Consult FAR Subpart 6.3 for guidance.

Do not include these instructions in the final document or contract file.

***Contact your Acquisition Department for any questions you may have.

***Justification and Approval for
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1. Agency/Contracting Activity: DHHS/IHS/Pawnee IHC

2. Description of Action:

Nature: ☒ New Requirement ☐ Follow-on Requirement
☐ Modification to Existing Purchase Order/Contract Number-

Pricing: ☒ Firm-Fixed Price ☐ Time & Materials ☐ Cost
☐ Other:

Funds: ☐ OMA ☒ Other Funds:

Name of Proposed Contractor(s):	Biomerieux, INC
Street Address:	515 Colorow Dr
City, State, Zip:	Salt Lake City, UTAH 84108
Phone:	Amy.McCourt@biomerieux.com Mobile: +1 (385) 271-8399

3. Description of Services or Supplies:

Basis for Approval (FAR 6.303-1(d)): ☒ Individual Basis ☐ Class Basis

The total estimated value of the proposed action, including all options is
\$ 172,680.00

Requesting BPA for Biomerieux respiratory test kits and quality control for respiratory testing. The Biomerieux VC-SPOTFIRE can differentiate between COVID-19, Influenza A, Influenza B, Respiratory syncytial virus (RSV), and Rhinovirus in 16 minutes, with one sample collection. Multiplex-testing for SARS-CoV-2, flu, RSV, and rhinovirus will be critical to detect and differentiate between disease states, enabling accurate patient diagnosis and treatment in a timely manner. Oklahoma currently has one of the highest flu rates in the nation. The request for a BPA that we can order against will provide expedited service without having to go through the purchase card process. This allows better service to patients during busy respiratory seasons. PCR tests are the "gold standard" for COVID-19 and other respiratory test. This system allows for greater efficiency of determining respiratory illnesses to rule out COVID-19 within 16 minutes, while also screening for 4 other respiratory targets. This includes SPOTFIRE® RSP Pos & Neg Controls - M425, Spotfire Respiratory Panel Mini, OCC 31034 item 424589 and Spotfire Respiratory Panel, OCC 31034, item 424461.

4. Authority and Rationale: Identify the statutory authority, FAR title, and FAR citation permitting other than full and open competition. It may be one of the following most commonly used citations by the operating divisions of the Department of Health and Human Services (HHS), but other exceptions may apply per FAR Subpart 6.3.

Actions other than simplified acquisition procedures (select only one and provide an explanation):

☒ FAR 6.302-1: Only one responsible source and no other supplies or services will satisfy agency requirements, 41 U.S.C. 253(c)(1)

Biomerieux is the manufacturer of the V-Spotfire system and owns proprietary to this equipment and test kits.

The Biomerieux VC-SPOTFIRE is the only FDA approved CLIA Waived supplier that can perform a combo test that will differentiate SARS-CoV-2, flu, RSV and rhinovirus using one sample collection. It is also the only supplier with a 15 respiratory target test kit that is FDA approved and CLIA Waived. Due to the increase in respiratory diseases in our patient population, this combo test is required and necessary for direct patient care.

☐ FAR 6.302-2: Unusal and compelling urgency, 41 U.S.C 253(c)(2)

☐ FAR 6.302-5: Authorized or Required by Statute, 41 U.S.C. 253(c)(5)

☐ Other (See FAR Subpart 6.3 for additional authority):

5. Bridge Contracts:

Not Applicable

6. Actions to Increase Competition:

There are no other vendors that can provide the respiratory test kits or the Quality control materials as Biomerieux is the manufacturer and has sole proprietary. There are no known approved third party distributors.

As vendors become available or other similar tests are developed and approved, the Government will seek competition from the those sources.

7. Market Research:

Research was performed on other systems in the market with CLIA waived multi-test capability that includes Combo Flu, COVID, RSV and rhinovirus.

-Roche Cobas Liat System has a combo Flu and COVID test that does not include RSV.

-Luminex provides a respiratory panel that is not CLIA Waived.

-Quidel Corporation provides a FLU and SARS combo that does not include RSV

-Abbott ID NOW COVID-19 2.0 has individual COVID test. Must test for each test individually with multiple samples.

The only instrument on the market that provides this capability using only one patient sample is the Biomerieux VC-SPOTFIRE. The one sample method reduces patient discomfort as well as provides a better quality of sampling. This analyzer and tests panels are CLIA Waived which allows for a more flexible QC program which decreases tech time providing a more efficient and effective laboratory program.

This analyzer is FDA approved for all the tests above.

The only other option is to send patient samples to reference lab which has a turn around time of at least 48 hours. This delays appropriate treatment.

8. Procurement History:

Previous Purchase Order(s) or Contract(s): ☒ Yes ☐ No

If "Yes", for each purchase order or contract provide:

Purchase order or contract number: 75H71124P00237

Was action competed? ☒ Yes ☐ No

Yes, a sole source notice was posted on Sam.gov for the Spotfire machine to include the test kits and quality control materials.

9. Additional Information to support the justification.

Providers are able to quickly differentiate between 4-15 respiratory diseases which may require different treatments, thus better serving our patients in a more timely fashion. We are currently in the height of respiratory season such as Flu, COVID and RSV and are in need of enough test kits to maintain operation.

10. Technical / Requirements Certification: By my signature below, I certify that the supporting data under my review which is included in this J&A is accurate and complete.

Program Manager

Name: John Brown

Position Title: Laboratory Supervisor

Email address: john.brown2@ihs.gov

Phone: 918-792-6682

(No signature required)

Program Manager Supervisor (or one level above Program Manager)

Name: Joyce Oberly

Position Title: CEO (A)

Email address: joyce.oberly@ihs.gov

Signature: **Joyce G. Oberly -S** Digitally signed by Joyce G. Oberly
-S
Date: 2025.01.31 16:36:44 -06'00'

11. Fair and Reasonable Price Determination: As Contracting Officer, by my signature below, I hereby determine that the anticipated cost to the Government for this contract action will be fair and reasonable.

A review of past history pricing from purchase order 75H71124P00237 for the same test kits revealed no increase in pricing to past history pricing. The previous purchase order was posted and the pricing was determined fair and reasonable based on the expectation of price competition. The pricing provided is also the company's published price listing to all IHS customers, therefore the pricing is hereby determined fair and reasonable. Additionally, Oklahoma has one of the highest flu rates in the nation. The ability to order against an established BPA will provide expedited service and help us to maintain continuity or service decrease the spread of the infections.

12. Contracting Officer's Approval: I hereby certify that this justification is accurate and complete to the best of my knowledge. I approve this sole source justification subject to availability of funds, and provided that the services and supplies herein described have otherwise been authorized for acquisition.

Signature: **Sean L. Long -S** Digitally signed by Sean L. Long -S
Date: 2025.02.04 06:43:02 -06'00'

Typed Name: Sean Long

Title: Chief Contracting Officer

Date: 2/4/25